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Case Number: 25STCP02872 Hearing Date: July 6, 2026 Dept: 224

Charanvattanakit and Capital Alliance Group v. American Direct Funding, LLC and Mark Mendoza

TENTATIVE RULING

As the Petition was timely made, and the requirements of Code of Civil Procedure section 1285.4 have been satisfied, the Petition to Confirm Arbitration Award is GRANTED. The Court will ENTER JUDGMENT according to the terms of the Arbitration Award as enumerated below.

Petitioner is Ordered to File, serve, and proof of service of a Proposed Judgment within 5 days. California Rules of Court, Rule 3.1312.

A Non-Appearance Case Review is Set for August 20, 2026 at 4:00 p.m. The Court must allow time for any objections to a proposed judgment.

Introduction

On July 31, 2025, Petitioners Narin Charanvattanakit and Capital Alliance Group filed the Petition to Confirm Arbitration Award in this action against Respondents American Direct Funding, LLC and Mark Mendoza.

On April 14, 2026, the Court advanced the hearing on the Petition from October 21, 2026 to July 6, 2026 at 9:00 a.m.

On April 15, 2026, Petitioner gave notice of the new hearing date, and filed proof of service of notice.

No opposition has been filed.

Legal Standard

California's law and public policy favors arbitration as "a speedy and relatively inexpensive means of dispute resolution." (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 9 (Moncharsh), internal quotations omitted.) By enacting the California Arbitration Act (CAA), which is codified in the Code of Civil Procedure (Code Civ. Proc., §§ 1280-1294.2), the Legislature expressed "its strong support for private arbitration and the finality of arbitral awards in [the CAA]." (Moncharsh, supra, 3 Cal.4th at p. 32.) "To support this policy and encourage parties to settle their disputes through arbitration, it is essential that

arbitration judgments be both binding and final. Thus, as a general rule, courts will indulge every reasonable intendment to give effect to arbitration proceedings.” (A.M. Classic Const., Inc. v. Tri-Build Development Co. (1999) 70 Cal.App.4th 1470, 1477-1478.)

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.” (Code Civ. Proc., §1285.) The petition must “(a) [s]et forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. [and] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” (Code Civ. Proc., § 1285.4.) The petition must also “name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Code Civ. Proc., § 1285.) A petition to confirm an award must be served and filed within four years after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288.)

“A response to a petition under this chapter may request the court to dismiss the petition or to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.2.)

If a petition or response to an arbitration award is duly served and filed, the court shall confirm the award as made, unless the court corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Moreover, a court may not vacate or correct an award unless a petition or response requesting that the award be vacated or corrected has been filed. (Code Civ. Proc. §§ 1286.4, 1286.8.) “A petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner.” (Code Civ. Proc., § 1288.)

The court may vacate an arbitration award only on the grounds set forth in Code of Civil Procedure section 1286.2. (Moncharsh, supra, 3 Cal.4th at pp. 12-13.) Section 1286.2 provides that the court shall vacate the award if it determines any of the following:

- (1) The award was procured by corruption, fraud or other undue means.
- (2) There was corruption in any of the arbitrators.
- (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.
- (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.
- (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.
- (6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

“The scope of judicial review of arbitration awards is extremely narrow. Courts may not review the merits of the controversy, the sufficiency of the evidence supporting the award, or the validity of the arbitrator’s reasoning..... Indeed, with limited exceptions, ‘an arbitrator’s decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties.’” (Dept. of Personnel Administration v. California

Correctional Peace Officers Ass'n (2007) 152 Cal.App.4th 1193, 1200.) (Accord California School Employees Assn. v. Bonita Unif. School Dist. (2008) 163 Cal.App.4th 387, 406-07.)

Discussion

Here, the Final Award was issued on April 17, 2023, by Arbitrator Leslie M. Werlin, in an arbitration administered by the American Arbitration Association (Case No. 01-21-0004-7957), arising out of the parties' November 16, 2018 Settlement Agreement. (Petition, Attachment 8(c).) The Petition alleges that a signed copy of the Award was served on April 17, 2023. (Petition, ¶ 9a.) The

Petition was filed on July 31, 2025. The Petition was thus filed more than 10 days, but less than four years, after the Award was served, and is therefore timely.

Further, the Petition complies with the Code of Civil Procedure requirements. A copy of the agreement to arbitrate – the November 16, 2018 Settlement Agreement and Release, with the arbitration provision at Paragraph 9 – is attached to the Petition. (Petition, ¶ 4 & Attachment 4(b).) The Petition sets forth the name of the Arbitrator, Leslie M. Werlin. (Petition, ¶ 6.) The Petition attaches a copy of the Final Award. (Petition, Attachment 8(c).) The Petition names as Respondents all parties to the arbitration, American Direct Funding, LLC and Mark Mendoza.

The Final Award states that the Arbitrator found in favor of Claimant Capital Alliance Group and against Respondent Mark Mendoza on Capital Alliance Group's claim for breach of fiduciary duty, and awarded the following:

“On the claim brought by CAG against Mark for breach of fiduciary duty, the decision of the Arbitrator is in favor of CAG and against Mark in the amount of \$63,799.24 plus interest pursuant to Civil Code Section 3288 at the rate of \$10.46 per day from February 23, 2023 until the date of the final award in this arbitration proceeding. Mark shall not share in, and is not entitled to, any part of this award to CAG.”

(Petition, Attachment 8(c).)

The Final Award further found in favor of Respondent Narin Charanvattanakit on all claims asserted against him by Mark Mendoza in the cross-claim, including breach of contract, breach of the implied covenant of good faith and fair dealing, breach of fiduciary duty, and fraud. All remaining claims were denied. No punitive damages were awarded, and no party was awarded arbitration costs or attorney fees. (Petition, Attachment 8(c).)

Respondents have not filed an opposition to the Petition, or any petition or motion to vacate or correct the Award.

As the Petition was timely made, and the requirements of Code of Civil Procedure section 1285.4 have been satisfied, the Petition to Confirm Arbitration Award is GRANTED. The Court will ENTER JUDGMENT according to the terms of the Arbitration Award as enumerated above.

Conclusion

The Petition to Confirm Arbitration Award is GRANTED. The Court will ENTER JUDGMENT according to the terms of the Arbitration Award as enumerated above.

Petitioner is Ordered to File, serve, and proof of service of a Proposed Judgment within 5 days. California Rules of Court, Rule 3.1312.

A Non-Appearance Case Review is Set for August 20, 2026 at 4:00 p.m. The Court must allow time for any objections to a proposed judgment.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.